

CourtrightCollective

STOP LOSING GOOD CASES

COURTRIGHT COLLECTIVE

The Legal Intake *Checklist*

Every step from first contact to signed engagement letter, for solo attorneys and small firms who are still running intake out of their inbox.

SOLO + SMALL FIRM

7 STAGES

SCRIPTS INCLUDED

COURTRIGHTCO.COM

BUILT IN NASHVILLE

The Legal Intake Checklist

Why intake is where the money leaks

A small firm loses far more revenue to slow intake than to bad marketing.

Somebody calls on a Tuesday afternoon. Nobody picks up, because everybody is in court or on a call or eating lunch for the first time that day. They leave a voicemail. It gets returned Thursday. By Thursday they have already talked to two other firms and hired one of them.

The marketing worked. The phone rang. The case went somewhere else anyway.

That is an operations problem, not a legal one. Which is good news, because operations problems have checklists.

Seven stages. Every one has a finish line and a time target. Print this. Put it next to whoever answers the phone. If that is you, put it next to you.

This is an operations checklist, not legal advice. Nothing here tells you what to put in an engagement letter, how to run a conflicts check under your jurisdiction's rules, or what your bar requires. Your state's rules of professional conduct govern all of that, and they win every time they disagree with anything on this page. Have your own engagement documents reviewed by somebody licensed where you practice.

Stage 1: First contact

Target: respond in under 5 minutes during business hours. Under 1 hour, always.

This is the whole ballgame. Legal consumers hire the firm that responds first far more often than they hire the firm with the better reviews. Speed is the cheapest competitive advantage available to a small firm and almost nobody uses it.

▪ Every entry point covered

- [] **Phone.** Answered live during business hours, by a person, every time
- [] **After-hours calls.** Answering service, or a voicemail greeting that sets a real expectation and a web form link
- [] **Website form.** Auto-reply fires instantly and says what happens next and when
- [] **Email.** Monitored by somebody whose job it is, not checked between hearings
- [] **Text.** If you publish a number that receives texts, somebody watches it
- [] **Chat or chatbot.** Routes into the same intake queue, not a separate inbox nobody opens
- [] **Referrals.** Logged the same way as everything else, so you can see who actually sends you work

▪ The auto-reply that buys you time

Subject: We got your message

Hi [first name] ,

Thanks for reaching out to [firm name] . We received your message and somebody from our office will call you [today / within one business day] .

If your matter is time-sensitive, especially if there is a court date or a filing deadline coming up, please call us directly at [number] and say it is urgent.

One note before we talk: sending this message does not create an attorney-client relationship, and nothing you send us is confidential until we have run a conflicts check and formally agreed to represent you. Please do not send sensitive documents until we have spoken.

[Firm name] [Phone] | [Address]

▪ First contact log

- [] Name, phone, email, best time to reach
- [] How they found you (referral, search, ad, past client, other)
- [] One line on what they need
- [] Any deadline they mentioned
- [] Date and time of contact, logged automatically wherever possible

Finish line: contact info captured, auto-reply sent, next action scheduled with an owner.

Stage 2: The screening call

Target: 10 to 15 minutes. Booked within one business day.

The purpose of this call is not to give advice. It is to find out, quickly and kindly, whether this is a case you want and can take.

▪ Opening script

"Hi [name] , this is [your name] with [firm] . Thanks for reaching out. I have about fifteen minutes and I want to use it to understand what is going on and figure out whether we are the right fit. I will be taking some notes as we go.

Before we get into it, two quick things. Talking today does not mean we represent you, that only happens once we both sign an agreement. And I may need to check for conflicts before we can go further. Sound okay?

Great. Tell me what happened, starting wherever makes sense to you."

Then stop talking. Let them tell it their way for two full minutes. You will learn more from how they tell it than from any question you could ask.

▪ What to capture

- ☐ What happened, in their words
- ☐ When it happened, and what the deadline situation is
- ☐ Every other party involved, with full names and spellings
- ☐ What they have already done about it
- ☐ Whether any other attorney is or was involved
- ☐ What outcome they actually want (often different from what they asked for)
- ☐ Documents they already have
- ☐ Whether anything has been filed or served
- ☐ Their expectation on timeline
- ☐ Their expectation on cost

▪ The five qualifying questions

1. **Is this in our practice area?** Be honest. Taking a matter outside your lane is how small firms get in trouble.
2. **Is it in our jurisdiction?**
3. **Is there a deadline that makes this urgent or impossible?**
4. **Can they afford it, and are they willing to?** Two different questions.
5. **Do I want to work with this person for the next [realistic duration] ?** Trust the answer.

▪ Red flags worth naming out loud

- ☐ They have fired two or more previous attorneys on this same matter
- ☐ They want a guaranteed outcome and will not accept that nobody can give one
- ☐ The deadline already passed
- ☐ Their goal is to punish somebody rather than to resolve something
- ☐ They argue about the consultation fee before the matter is even understood
- ☐ The facts change materially between the form and the call
- ☐ They will not give full names of the other parties
- ☐ They want you to do something you would not want to explain to your bar

One flag is a conversation. Two or more is usually a decline. Declining a bad case is a business decision, and the cases you decline pay for themselves in the hours you get back.

Finish line: screening notes complete, qualified or declined, decision logged with a reason.

Stage 3: Conflicts check

Target: same day. Before any confidential detail is discussed in depth, and always before an engagement letter goes out.

- ☐ Run the client name, including former names and aliases
- ☐ Run every adverse party
- ☐ Run related entities: businesses, spouses, parents, subsidiaries, insurers

- ☐ Run witnesses and other relevant parties where applicable
- ☐ Check current matters
- ☐ Check closed matters
- ☐ Check prospective clients you screened and declined
- ☐ Document the search: what was searched, when, by whom, and the result
- ☐ If a conflict appears, follow your jurisdiction's rules on waiver or decline
- ☐ Log the outcome either way, including declines

The part firms skip: logging the declined and prospective clients. Those create conflicts too, and a search that only covers signed clients is not a real search.

Finish line: search run, documented, cleared or declined.

Stage 4: The consultation

Target: booked within 3 business days of the screening call.

▪ Before the meeting

- ☐ Conflicts cleared
- ☐ Consultation fee handled: charged, waived, or credited (decide your policy once and hold to it)
- ☐ Calendar invite sent with location or video link
- ☐ Reminder scheduled for 24 hours before and 1 hour before
- ☐ Intake form sent and, ideally, completed in advance
- ☐ Document list sent so they arrive with what you need
- ☐ Screening notes reviewed. Never walk in cold, they told their story once already

▪ Intake form fields

Client

- ☐ Full legal name, and any former or other names used
- ☐ Date of birth
- ☐ Address, mailing address if different
- ☐ Phone, email, preferred contact method and time
- ☐ Preferred language, and whether an interpreter is needed
- ☐ Employer and occupation, where relevant
- ☐ Emergency or alternate contact
- ☐ How they found you

Matter

- ☐ Matter type
- ☐ Description in their own words
- ☐ Key dates: incident, filing, service, hearings, statute of limitations if known
- ☐ All other parties with full names
- ☐ Insurance information where relevant

- ☐ Prior or current attorneys on the matter
- ☐ Court and case number if one exists
- ☐ Documents provided, itemized

Business and consent

- ☐ Fee arrangement discussed and understood
- ☐ Preferred billing and payment method
- ☐ Consent to communicate by email and text, with the risks explained
- ☐ Signature and date

▪ During the consultation

- ☐ Confirm the facts from screening. Note anything that changed
- ☐ Explain the process in plain language, stage by stage
- ☐ Give a realistic timeline, including the part where nothing appears to happen
- ☐ Explain the fee structure. Say the actual number out loud
- ☐ Explain what you need from them and how often
- ☐ Answer "what happens next" before they ask it
- ☐ Confirm the decision timeline: when will they decide, and when will you follow up

▪ Talking about money without flinching

"Let me walk you through the cost so there are no surprises. This kind of matter typically runs **[range]**. I would ask for **[retainer]** up front, and I bill at **[rate]** against that. When the retainer gets to **[threshold]**, I will ask you to replenish it and I will tell you before that happens, not after.

I know that is real money. What I can tell you is that you will get an itemized statement every **[frequency]**, and if you ever look at one and do not understand a line, call me and I will explain it. I would much rather have that conversation than have you wondering."

Then stop and let them respond. Do not fill the silence. Filling the silence is how firms discount work nobody asked them to discount.

Finish line: consultation held, fee discussed with a number, decision timeline agreed.

Stage 5: Engagement

Target: agreement sent within 24 hours of the consultation. Every time.

The fall-off between "I want to hire you" and "signed" is brutal, and almost all of it is caused by delay. Send it same day if you can.

- ☐ Engagement letter or fee agreement sent within 24 hours
- ☐ Scope of representation stated clearly, including what is **not** included
- ☐ Fee structure, rates, and who bills at each rate

- ☐ Retainer amount and replenishment terms
- ☐ Costs and expenses handled separately from fees
- ☐ Billing frequency and payment terms
- ☐ Communication expectations, both directions
- ☐ Termination terms, both directions
- ☐ File retention and return policy
- ☐ Signature request sent electronically, not as a print-and-scan chore
- ☐ Retainer invoice sent alongside the agreement, not after it
- ☐ Follow-up scheduled for 48 hours if unsigned
- ☐ Second follow-up at 5 days, then close the file as **Did Not Retain** with a reason

Have your own engagement documents reviewed by counsel licensed in your jurisdiction. This checklist covers the operational steps, not the contents.

Finish line: signed agreement and cleared retainer, both received.

Stage 6: Onboarding the new client

Target: welcome packet within 24 hours of the signed agreement.

The week after signing sets the tone for the entire matter. It is also when most client anxiety happens, because they just spent real money and nothing visible is occurring yet.

- ☐ Welcome email or packet with what happens next, in order
- ☐ Their point of contact named, with a photo if you can
- ☐ Response time expectation stated plainly
- ☐ Client portal or document upload set up, with credentials sent securely
- ☐ Document request list, prioritized, with deadlines
- ☐ Calendar entries created for every known deadline
- ☐ Matter opened in your case management system
- ☐ Conflicts record finalized and attached to the matter
- ☐ File structure created and naming convention followed
- ☐ First substantive step scheduled and communicated to the client

▪ The welcome email that reduces anxiety and calls

Hi [name] ,

Everything is signed and we are officially working together. Here is what happens next.

This week: [specific action] **Next [timeframe] :** [specific action] **What I need from you:** [list, with a deadline]

A note on timing. Legal matters have long stretches where nothing visible happens. If you do not hear from me for a couple of weeks, it does not mean nothing is moving. I will check in every [frequency] regardless.

Best way to reach me is [method] . I answer within [timeframe] on business days.

[Name]

Finish line: client onboarded, first step scheduled, deadlines calendared.

Stage 7: Close the loop on everyone else

The people you did not sign are worth more than most firms think.

- [] Every declined matter gets a courteous decline in writing
- [] Declines include a referral where you can offer one, and a note that deadlines may apply and they should act promptly
- [] Every "did not retain" is logged with the reason
- [] Every referral source gets a thank you, whether or not the matter signed
- [] Monthly review of declines and non-retains, looking for patterns

▪ The decline letter

Hi [name] ,

Thank you for taking the time to tell me about your situation. After reviewing it, [firm name] is not able to take this matter on. That is not a judgment about the merits of your case.

[If applicable: You may want to contact [referral], who handles this kind of matter.]

One important note. There may be deadlines that apply to your situation, and missing one can affect your rights permanently. Please speak with another attorney promptly.

I wish you the best with it.

[Name]

Finish line: nobody is left wondering, every outcome is logged.

The numbers to watch

Track these monthly. Fifteen minutes, and they will tell you more than any marketing report.

METRIC	HOW TO CALCULATE	A HEALTHY TARGET
Speed to first response	Average time from inquiry to human contact	Under 1 hour
Contact rate	Inquiries you actually reached / total inquiries	80 percent or better
Screening to consult rate	Consults booked / qualified screenings	60 percent or better
Consult to signed rate	Signed / consults held	40 to 60 percent, varies by area
Time to signature	Agreement sent to signature received	Under 48 hours
Cost per signed matter	Marketing spend / signed matters	Know it. Most firms do not
Decline reasons	Grouped by reason, monthly	Look for fixable patterns

If speed to first response is over an hour, fix that before you spend another dollar on marketing. It is the cheapest possible improvement to your revenue and it does not require a single new lead.

What to automate first

You do not need a bigger team to fix intake. You need three or four things to happen without a human remembering them. In rough order of return:

- 1. Instant auto-reply on every web form and after-hours call.** Costs nothing, buys hours.
- 2. Appointment reminders at 24 hours and 1 hour.** Cuts no-shows dramatically.
- 3. Intake form that lands directly in your case management system** instead of being retyped from a PDF.
- 4. Follow-up sequence on unsigned agreements** at 48 hours and 5 days.
- 5. Document request reminders** until the documents actually arrive.
- 6. A monthly intake report** that builds itself and appears in your inbox.

Every one of those is a task somebody at your firm currently does by hand, forgets under pressure, and feels bad about later.

The one-page version

- 1. Answer fast.** Five minutes beats every other advantage you have.
- 2. Screen before you consult.** Fifteen minutes saves an hour.
- 3. Run conflicts before anything confidential.** Log the declines too.
- 4. Say the fee number out loud, then stop talking.**
- 5. Send the agreement within 24 hours.** Delay is where signatures die.
- 6. Onboard in the first 24 hours.** It sets the tone for the whole matter.
- 7. Close the loop with everyone,** including the ones you declined.

Operations checklist only. Not legal advice, not a substitute for your jurisdiction's rules of professional conduct, and not a template for your engagement documents. Have those reviewed by somebody licensed where you practice.